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california - Legislation on psychedelic use, disconnection of workers killed

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Page: 5
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A California bill to regulate therapeutic psychedelic use and another that would require employers to allow employees to disconnect from work in their off hours were the latest victims of a process used to kill bills without public comment.

The bill involving psychedelics, SB 1012, was the latest attempt by Sen. Scott Wiener, D-San Francisco, to move psychedelics out of the shadows and into a regulated environment.

The bill would allow patients to use psychedelic drugs in a therapeutic setting under the supervision of a licensed and trained facilitator. It would not decriminalize psychedelics. Gov. Gavin Newsom vetoed a bill that would have done that in 2023.

In a statement, Wiener acknowledged that his bill was coming in “a terrible budget year, where all bills with significant costs are at risk.”

“Nevertheless, it’s disappointing for this bill not to move forward. Psychedelics have massive promise in helping people heal and get their lives back on track. It makes enormous sense for California to lead in creating regulated access under the supervision of a licensed professional,” Wiener said.

The senator said he will continue to work on expanding access to psychedelics.

The work bill, AB 2751, by Assemblyman Matt Haney, D-San Francisco, was called a “Right to Disconnect” bill. It would have required California employers, with exceptions, to clearly delineate work hours and off-work hours. They would then have to avoid contacting employees during the latter.

Elsewhere, both the Senate and Assembly Appropriations Committees largely cleared the way for a number of high-profile bills to advance. Lobbyist Chris Micheli reported Senate Appropriations advanced nearly 75% of bills, while Assembly Appropriations approved about 65%.

Both bills were the victims of the suspense file, a legislative mechanism used for bills with a significant financial impact.

The Senate and Assembly Appropriations committees can vote to send the bills to the floor. But they can also hold them in committee, effectively killing them, without explaining why or forcing members to vote individually.

Senate Appropriations

In other legislative action, the Senate Appropriations Committee cleared the way for local governments to be able to regulate self-driving vehicles in their jurisdiction.

It also advanced the following bills:

• Senate Bill 915, by Sen. Dave Cortese, D-San Jose, was narrowed to only apply to California’s 15 largest cities, and also to prevent local governments from outright banning autonomous vehicles.

• Senate Bill 1043, by Sen. Shannon Grove, R-Bakersfield, which was backed by celebrity heiress Paris Hilton and

which would reform the “troubled teen industry” in California, moved one step closer to becoming law.

• Senate Bill 1053 by Sen. Catherine Blakespear, D-Encinitas, to ban the sale of reusable plastic bags at retail outlets.

• Senate Bill 1116 by Sen. Anthony Portantino, D-La Cañada Flintridge, that would allow striking workers to collect unemployment insurance.

• Senate Bill 1446 by Sen. Lola Smallwood-Cuevas, D-Los Angeles, that would limit retailers’ use of self-service checkout stations.

• Senate Bill 1459 from Sen. Janet Nguyen, R-Huntington Beach, to require more populous counties to record the outcomes of animals at their public shelters, including how many are euthanized.

Assembly Appropriations

On the Assembly side, lawmakers killed bills limiting utility bill fees and establishing a framework for universal health care.

• Assembly Bill 1999 from Assemblywoman Jacqui Irwin, D-Thousand Oaks, would have limited a controversial new fixed fee being added to Californians’ electricity bills. Irwin’s bill would have capped yearly fee increases and set a 2028 end date for the policy. AB 1999 was the subject of intense discussions during a Wednesday hearing in the Assembly Energy and Utilities Committee and barely made it to Appropriations.

The Appropriations Committee did poll individual members on the bill on Thursday, but most chose not to vote.

• Assembly Bill 2200 from Assemblyman Ash Kalra, D-San Jose, would have created a framework for a state universal health care system. Kalra’s previous universal health care effort which business groups fiercely oppose died in early 2022 without an Assembly floor vote.

The committee did advance a handful of other notable bills, including:

• A handful of bills from Democratic lawmakers that are part of a retail theft package from Assembly Speaker Robert Rivas, D-Hollister.

• Assembly Bill 2316 from Assemblyman Jesse Gabriel, D-Woodland Hills, that would ban certain food chemicals from items served in California schools.

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